

CCRB INVESTIGATIVE RECOMMENDATION

Investigator: Caitlin Schwartz	Team: Team # 6	CCRB Case #: 201210076	☒ Force ☒ Discourt. ☐ U.S. ☒ Abuse ☐ O.L. ☐ Injury
Incident Date(s) Thursday, 08/02/2012 11:37 PM	Location of Incident: Fountain Avenue and Sutter Avenue	18 Mo. SOL 2/2/2014	Precinct: 75
Date/Time CV Reported Sat, 08/04/2012 11:44 AM	CV Reported At: CCRB	How CV Reported: Call Processing System	Date/Time Received at CCRB Sat, 08/04/2012 11:44 AM

Complainant/Victim	Type	Home Address

Subject Officer(s)	Shield	TaxID	Command
1. POM Juan Morales	07010	952033	075 PCT
2. POM Ryan Olsen	11530	949417	075 PCT

Witness Officer(s)	Shield No	Tax No	Cmd Name
1. POM Jonathan Mckiski	14969	951990	075 PCT
2. SGT Thomas Ormond	03265	920681	075 PCT
3. SGT Lutfi Dalipi	01605	943128	075 PCT
4. POM Frederick Manney	22317	949938	075 PCT
5. POM Scott Smath	02019	949674	075 PCT

Officer(s)	Allegation	Investigator Recommendation
A . POM Juan Morales	Abuse: PO Juan Morales searched the car in which § 87(2)(b) was an occupant.	A . Exonerated
B . POM Ryan Olsen	Discourtesy: PO Ryan Olsen spoke discourteously to § 87(2)(b)	B . Unsubstantiated
C . POM Ryan Olsen	Force: PO Ryan Olsen used physical force against § 87(2)(b)	C . Unsubstantiated

Case Summary

On August 4, 2012, § 87(2)(b) filed this complaint with the Civilian Complaint Review Board via its Call Processing System (encl. 3F-G). On August 2, 2012, PO Juan Morales of the 75th Precinct arrested § 87(2)(b) at Fountain Avenue and Sutter Avenue in Brooklyn. The following allegations resulted:

Allegation A—Abuse of Authority: PO Juan Morales searched the car in which

§ 87(2)(b) **was an occupant.**

§ 87(2)(g)

It is therefore recommended that **Allegation A** be closed as **exonerated**.

Allegation B—Discourtesy: PO Ryan Olsen spoke discourteously to

§ 87(2)(b) **Allegation C—Force: PO Ryan Olsen used physical force against**

§ 87(2)(g)

It is therefore recommended that **Allegations B and C** be closed as **unsubstantiated**.

Results of Investigation

Civilian Statement

Complainant/Victim: § 87(2)(b)

- § 87(2)(b) *on the incident date,* § 87(2)(b) *is a black male,* § 87(2)(b) *with black hair and brown eyes.* § 87(2)(b)

Notice of Claim

On § 87(2)(b), § 87(2)(b) filed a Notice of Claim with the New York City Comptroller's Office, wherein he stated that on August 2, 2012, at approximately 11:00 p.m., as he drove to work, he came to a police road block in the vicinity of Fountain Avenue and Sutter Avenue in Brooklyn, and provided police officers with his license and registration. Police officers then ordered § 87(2)(b) to exit his vehicle, and after he did so, they searched his vehicle. They recovered a pocket knife that § 87(2)(b) uses for his job § 87(2)(b). The officers then tightly handcuffed § 87(2)(b) punched him in the chest, kned him and broke his glasses. § 87(2)(b) also claimed that he missed three days of work as a result of his false arrest and imprisonment. He sought one million dollars as redress (encl. 3H-K).

CCRB Testimony

On August 14, 2012, § 87(2)(b) was interviewed at the CCRB (encl. 4A-E).

§ 87(2)(g)

On August 2, 2012, at a time determined by the investigation to be 11:37 p.m., § 87(2)(b) drove southbound on Fountain Avenue in Brooklyn on his way to work. § 87(2)(b) drove a grey 2005 Nissan Maxima. § 87(2)(b)'s vehicle has four doors, and there are tints on the windows of each of the four doors in addition to on the back windshield. § 87(2)(b) had been summonsed for the tints prior to this incident. As he drove on Fountain Avenue, § 87(2)(b) encountered a road

block. An officer told § 87(2)(b) that officers were going to ask for his license and registration after he pulled his vehicle up to the checkpoint. § 87(2)(b)'s driver's side window was down and the passenger's side window was slightly up. § 87(2)(b) saw a marked NYPD van that remained stationary about four or five cars ahead of his.

§ 87(2)(b) pulled up his vehicle, and officers approached. An officer, identified by the investigation to be PO Ryan Olsen of the 75th Precinct, approached the driver's side window and asked why the tints on § 87(2)(b)'s windows were so dark. § 87(2)(b) described PO Olsen as a white male in his mid to late twenties, who stood at about six feet tall with a slim build and dark blond hair. PO Olsen asked for § 87(2)(b)'s license and registration. An officer, who had approached the passenger's side of § 87(2)(b)'s vehicle, determined by the investigation to be PO Frederick Manney of the 75th Precinct, asked § 87(2)(b) to roll his window down. Once § 87(2)(b) had rolled the window down, PO Manney asked him to turn his music off, and he complied. PO Manney then asked where § 87(2)(b) was headed. § 87(2)(b) told him that he was on his way to work § 87(2)(b).

§ 87(2)(b) had not yet handed over his documentation to the officers. He reached toward his cup holder to retrieve his identification. PO Olsen then asked § 87(2)(b) to get out of the vehicle because the officers were going to search him. PO Olsen frisked § 87(2)(b)'s waist, and the front pockets of his pants. He also frisked § 87(2)(b)'s legs down to the ankles, his torso and under his arms. § 87(2)(b) noticed an officer, determined by the investigation to be PO Juan Morales, who had also approached the passenger's side, enter § 87(2)(b)'s car through the passenger's side door. § 87(2)(b) observed that PO Morales had his knee on the passenger's seat, and saw him go into the glove compartment. § 87(2)(b) yelled his objection to PO Morales going through his car. § 87(2)(b) did not see what else PO Morales did in the car because PO Olsen pulled § 87(2)(b) to the back of the vehicle and pushed him against the car. § 87(2)(b) did not see any other officers go inside his vehicle. PO Olsen simultaneously told § 87(2)(b) to cross his legs, and grabbed his right forearm. He put his legs in front of § 87(2)(b)'s legs, and tried to pull him down to the ground by his arms. § 87(2)(b) yelled at PO Olsen, asking what the "fuck" he was doing and why he tried to trip him. PO Olsen then pulled § 87(2)(b)'s right arm behind his back and handcuffed him. § 87(2)(b) told the officers that "shit like this" was why no one liked them and they made a bad name for themselves. § 87(2)(b) called the officers "motherfuckers."

Officers pushed § 87(2)(b) toward the NYPD van, which § 87(2)(b) stated had remained in the same spot throughout the duration of the incident. § 87(2)(b) estimated that four officers pushed him toward the van, three of whom were white and one of whom was black.

As they made their way toward the NYPD van, § 87(2)(b) complained that the officers bothered a black male who drove a nice car on his way to work instead of individuals who committed serious crimes. When they had made it about halfway between § 87(2)(b)'s car and the NYPD van, PO Olsen told § 87(2)(b) to shut the "fuck" up. § 87(2)(b) responded by telling PO Olsen to shut the "fuck" up. As § 87(2)(b) walked, PO Olsen punched him in the chest. PO Olsen had been walking behind § 87(2)(b) and holding his right arm with his left hand. He brought his arm around § 87(2)(b) to punch him in the center of his chest. PO Olsen then bent § 87(2)(b) over his handcuffed arms, and kneed him in the same approximate spot as where the punch had landed. As PO Olsen kneed him, § 87(2)(b)'s glasses fell off of his face and onto the floor. § 87(2)(b) yelled at PO Olsen to pick up the glasses. PO Olsen stated, "Fuck your glasses; keep it moving." The officers continued to push § 87(2)(b) toward the van.

§ 87(2)(b) was then placed in the van. An officer approached § 87(2)(b) and showed § 87(2)(b) a pocketknife. He informed § 87(2)(b) that the officers had found the pocketknife in his vehicle. § 87(2)(b) explained that he used the knife for work. The officers had retrieved this knife from the front seat cup holder. The knife was not covered by anything, and had been in plain view. § 87(2)(b) estimated that when closed, the knife was about three or four inches long.

If the blade was open, § 87(2)(b) estimated that it measured to be about six inches long. The officers also removed § 87(2)(b)'s phone and identification from his car. § 87(2)(b)'s license was eventually returned to him, but he did not receive his registration or insurance card.

Inside the van on the way to the stationhouse, § 87(2)(b) identified a PO Jonathan Mckiski, also of the 75th Precinct, in the passenger's seat. § 87(2)(b) read PO Mckiski's name off his shield. When § 87(2)(b) was inside the van, he yelled at the officers for going into his car.

§ 87(2)(b) sustained slight chest pain after the incident due to being punched and kned. § 87(2)(b) did not request any medical attention or receive any medical treatment following the incident.

Attempts to Contact Civilians

§ 87(2)(a) 160.50

A Lexis Nexis search was conducted and yielded a phone number for § 87(2)(b) which was called on October 29, 2013, and found to be disconnected.

NYPD Statements:

Subject Officer: PO JUAN MORALES

- § 87(2)(b) old on the incident date, PO Morales is a Hispanic male, § 87(2)(b) with black hair and brown eyes.
- PO Morales' tour began at 7:30 p.m. on August 2, 2012, and concluded at 4:05 a.m. on August 3, 2012. He was assigned to the 75th Precinct and a solo foot post. He ended up conducting a vehicle safety checkpoint during his tour. He issued his first summons from the checkpoint at 10:53 p.m.

Memo Book

PO Morales recorded in his memo book that at 11:37 p.m., he stopped a vehicle at the corner of Fountain Avenue and Sutter Avenue § 87(2)(a) 160.50

PO Morales arrested § 87(2)(b) (encl. 5A-D).

Arrest and Complaint Reports

§ 87(2)(a) 160.50

CCRB Testimony

On March 14, 2013, PO Morales was interviewed at the CCRB (encl. 5G-I). His statement is summarized below.

On August 2, 2012, at approximately 11:37 p.m., PO Morales was conducting a vehicle safety checkpoint, watching out for violations of safety codes.

PO Morales and PO Olsen stopped § 87(2)(b)'s vehicle. When § 87(2)(b)'s vehicle went through the checkpoint, PO Morales observed that it had dark window tints. PO Morales stated that § 87(2)(b)'s window tints were at 90 percent when the legal limit is 70 percent. PO Morales said that PO Olsen, who was on the driver's side, did most of the talking. He did not recall what PO Olsen said, but thought that PO Olsen probably asked for license, registration and proof of insurance, as per standard protocol. § 87(2)(b) was asked to roll down his windows halfway, so that the tints could be measured. PO Olsen measured the window tints. When the windows were halfway down, PO Morales shone a flashlight into the passenger's side window and observed a knife in the center console. The knife was foldable, and he suspected that it was a gravity knife. When he observed the knife, he signaled PO Olsen or made a statement to him, and PO Olsen asked § 87(2)(b) to step out of the vehicle so that he could determine that § 87(2)(b) did not have any weapons on his person. § 87(2)(b) was hesitant, but complied. PO Morales entered the vehicle via the passenger's side and removed the knife. His whole body was in the vehicle at the time. He stepped out of the vehicle after removing the knife. He opened the knife and confirmed that it was a gravity knife, § 87(2)(a) 160.50. He then notified PO Olsen that he found a gravity knife. PO Morales was asked if he searched anywhere else in the vehicle, and he replied that he did not at that point, but he did check the vehicle later on at the stationhouse. He did not recall any other officer entering or searching the vehicle.

PO Morales observed PO Olsen frisk § 87(2)(b). PO Olsen then asked § 87(2)(b) to put his hands behind his back. § 87(2)(b) repeatedly declined the officers' requests and stated that he would not go to jail. He stated that the officers had no reason to stop him. First, § 87(2)(b) refused to turn around, then once he did turn around, he continued to flail his arms and pull his wrist away as PO Olsen attempted to grab it. PO Olsen was eventually able to grab one wrist, at which point it seemed to PO Morales that § 87(2)(b) resigned to being handcuffed. PO Morales denied that § 87(2)(b) was taken to the ground at any point.

PO Morales said that § 87(2)(b) was cursing, but he did not recall § 87(2)(b)'s specific remarks. PO Morales characterized § 87(2)(b) as the most combative he has ever seen anyone be with this kind of vehicle stop and arrest.

PO Morales was responsible for escorting § 87(2)(b)'s vehicle back to the stationhouse. There was a police van that contained numerous prisoners, who had been arrested as a result of the checkpoint. PO Scott Smath sat in the driver's side of the prisoner van, and Sgt. Thomas Ormond was in the passenger's seat. From § 87(2)(b)'s vehicle, which was about half a block away from the van according to his estimation, PO Morales observed § 87(2)(b) be escorted to the van by PO Olsen and additional officers, who PO Morales could not identify at the time of his CCRB interview. § 87(2)(b) made it difficult for the officers to escort him to the van by yelling, cursing, and making his body go limp instead of walking so the officers had to drag him forward. The officers lifted § 87(2)(b) so that his feet were off the ground, and he would not hurt himself. PO Morales did not witness any officers push or strike § 87(2)(b) or knee § 87(2)(b) in the chest. PO Morales confirmed that the only physical contact that he observed officers make with § 87(2)(b) was the handcuffing and escorting him to the van. He did not recall any officer use profanity toward § 87(2)(b).

Subject Officer: PO RYAN OLSEN

- § 87(2)(b) old on the incident date, PO Olsen is a white male, § 87(2)(b) with brown hair and eyes.
- PO Olsen's tour began at 7:30 p.m. on August 2, 2012, and concluded at 4:05 a.m. on August 3, 2012. He was Sgt. Lutfi Dalipi's operator, and also worked with PO Juan Morales. He was in uniform and assigned to a marked vehicle.

Memo Book

PO Olsen noted in his memo book that at 11:37 p.m., PO Morales made an arrest for

§ 87(2)(a) 160.50

CCRB Testimony

On July 3, 2013, PO Olsen was interviewed at the CCRB (encl. 11D-E) § 87(2)(g)

When § 87(2)(b)'s vehicle was pulled into the vehicle safety checkpoint, PO Olsen requested his license, registration and insurance card. § 87(2)(b) asked, "Why am I here? What is this about?" PO Olsen explained that it was a vehicle safety checkpoint and that § 87(2)(b)'s vehicle was either pulled in because it was the third vehicle or due to an observable violation. § 87(2)(b) then provided the requested documentation. PO Morales then informed PO Olsen that he had observed something in § 87(2)(b)'s vehicle, and signaled PO Olsen to have § 87(2)(b) step out of the vehicle. PO Olsen was not sure which signal PO Morales used to convey this instruction. PO Olsen asked § 87(2)(b) to step out of the vehicle three times, and § 87(2)(b) complained that he had to get to work and he did not know why he was being stopped, but ultimately complied. Once § 87(2)(b) got out of the vehicle, PO Olsen told § 87(2)(b) to step to the right of the vehicle and face him. PO Olsen instructed § 87(2)(b) to face him three times, and § 87(2)(b) refused to comply. § 87(2)(b) faced PO Morales, who was on the passenger's side of the vehicle. PO Olsen wanted § 87(2)(b) to face away from his vehicle. § 87(2)(b) ultimately turned around. PO Olsen did not see what PO Morales did inside the car because he was watching § 87(2)(b). PO Morales then told PO Olsen, "92," indicating an arrest situation. PO Morales removed a knife from the vehicle. PO Olsen did not see PO Morales search anywhere else inside the vehicle. PO Olsen did not go inside § 87(2)(b)'s vehicle, or see any other officer besides PO Morales do so. PO Olsen did not see the knife at any point. § 87(2)(b) did not want to put his hands behind his back or be cuffed. PO Smath then came over to assist. PO Olsen believed that PO Smath probably heard commotion and approached. § 87(2)(b) flailed his arms, and PO Olsen instructed him to put his hands behind his back. PO Olsen estimated that it took 10 to 13 seconds to secure § 87(2)(b) in handcuffs. PO Smath assisted PO Olsen in putting on the handcuffs. PO Olsen frisked § 87(2)(b) after he was handcuffed.

The officers then escorted § 87(2)(b) to the van, and he resisted by moving his body, trying to grab the officers, stopping suddenly and attempting to sit down. PO Olsen denied that the officers pushed § 87(2)(b) toward the van. PO Olsen did not recall telling § 87(2)(b) to shut the "fuck" up. He also denied punching or kneeing § 87(2)(b) in the chest. He denied that he or any other officer used any other physical force against § 87(2)(b) besides securing him in handcuffs. He did not recall whether § 87(2)(b)'s glasses fell off. He did not tell § 87(2)(b) "fuck your glasses; keep it moving," or use any other profanity toward § 87(2)(b).

Witness Officer: PO FREDERICK MANNEY

- § 87(2)(b) old on the incident date, PO Manney is a white male, § 87(2)(b) with brown hair and green eyes.
- PO Manney's tour began at 7:30 p.m. on August 2, 2012, and concluded at 4:05 a.m. on August 3, 2012. On the incident date, he was assigned to impact post 64, and at 9:30 p.m., he began conducting a vehicle safety checkpoint at Fountain Avenue and Sutter Avenue. He believed that he worked with 10 to 15 other officers, including PO Juan Morales, PO Ryan Olsen and PO Scott Smath, along with multiple supervisors, including Sgt. Thomas Ormond and Sgt. Lutfi Dalipi, at the checkpoint. He was in uniform and worked on foot.

Memo Book

PO Manney recorded in his memo book that at 9:30 p.m., he began conducting the checkpoint at Fountain Avenue and Sutter Avenue. At 11:37 p.m., he arrested § 87(2)(b) (encl. 7A-C).

CCRB Testimony

On April 10, 2013, PO Manney was interviewed at the CCRB (encl. 7D-E). His statement is summarized below.

On August 2, 2012, at approximately 11:37 p.m., § 87(2)(b)'s vehicle pulled into the vehicle safety checkpoint. PO Manney approached the passenger's side with PO Morales, while PO Olsen approached the driver's side. PO Manney believed that § 87(2)(b)'s vehicle had window tints. The officers instructed § 87(2)(b) to roll down all of his windows and turn off his lights. PO Manney did not issue § 87(2)(b) any instructions. PO Manney said that he did not know if § 87(2)(b) was asked for identification because he was not talking to § 87(2)(b) and could not hear PO Olsen's interaction with him.

PO Morales informed PO Manney that he observed a gravity knife in § 87(2)(b)'s vehicle. PO Manney then personally observed the knife. PO Manney believed that the knife was in the center console or cup holder. PO Manney recognized it as a gravity knife based on its appearance. § 87(2)(b) was then instructed to turn off and exit his vehicle, and he complied. PO Manney denied that § 87(2)(b) was frisked. PO Olsen then placed § 87(2)(b) under arrest § 87(2)(a) 160.50 PO Manney stated that § 87(2)(b) did not resist when PO Olsen handcuffed and arrested him. PO Manney believed that PO Olsen was not assisted by any other officer when handcuffing § 87(2)(b).

He observed PO Morales enter the passenger's side of the vehicle and remove the knife. He did not see PO Morales conduct any other search of the vehicle. He did not believe that he or any other officer besides PO Morales entered the vehicle.

§ 87(2)(b) resisted when he was being escorted to the prisoner van. PO Manney did not observe § 87(2)(b) walking toward the van, but he specifically remembered that, as multiple officers tried to place § 87(2)(b) in the van, § 87(2)(b) put his foot on the metal step to enter the van, kicked it, and pushed off of it. When PO Manney observed this behavior, he approached. He estimated that § 87(2)(b)'s resistance to being placed in the van lasted 15 to 30 seconds. By the time PO Manney reached the van, § 87(2)(b) was already inside of it. PO Manney described § 87(2)(b)'s demeanor as irate because he was screaming and cursing. He did not recall § 87(2)(b)'s specific remarks.

PO Manney denied that he or any officer punched, kneed or pushed § 87(2)(b) or used any profanity toward him. PO Manney did not see § 87(2)(b) fall to the ground at any point during the incident.

Witness Officer: SGT. LUTFI DALIPI

- § 87(2)(b) old on the incident date, Sgt. Dalipi is a white male, § 87(2)(b) with brown hair and eyes.
- Sgt. Dalipi's tour began at 7:15 p.m. on August 2, 2012 and concluded at 4:12 a.m. on August 3, 2012. His assignment was impact sergeant. He was in uniform and worked with PO Ryan Olsen in marked RMP 3539.

Memo Book

Sgt. Dalipi recorded in his memo book that at 9:32 p.m., he conducted a checkpoint at Fountain Avenue and Sutter Avenue, and at 11:37 p.m., there were three individuals arrested. PO Hall and PO Morales each arrested one individual § 87(2)(a) 160.50

§ 87(2)(b) The arrested individuals were transported by Sgt. Ormond (encl. 6A-C).

CCRB Testimony

On April 10, 2013, Sgt. Dalipi was interviewed at the CCRB (encl. 6A-C). His statement is summarized below.

Sgt. Dalipi observed a brief struggle in progress with PO Morales' arrest about 20 yards away from him. He did not witness § 87(2)(b)'s vehicle be stopped. He observed PO Morales and PO Olsen attempt to pull § 87(2)(b)'s hands behind his back and handcuff him. One officer was on each side of § 87(2)(b) as he pulled his hands away in an effort to resist being handcuffed. Sgt. Dalipi walked over to PO Morales, and by the time he reached him, § 87(2)(b) had been successfully handcuffed. Sgt. Dalipi estimated that the struggle lasted about 20 seconds. Sgt. Dalipi approached to verify § 87(2)(b)'s arrest. PO Morales told him that he was making the arrest after observing a gravity knife in plain view inside § 87(2)(b)'s vehicle. Sgt. Dalipi instructed PO Olsen and PO Morales to place § 87(2)(b) in the prisoner van. He did not issue the officers any other instructions.

Sgt. Dalipi did not observe § 87(2)(b) be escorted to the van, and did not know which officers brought him to the van. He denied witnessing any other struggle than the one previously mentioned. He denied witnessing any officer punch, strike, push or knee § 87(2)(b). He did not observe any officer search § 87(2)(b)'s vehicle. He did not hear any officer use profanity toward § 87(2)(b).

Witness Officer: SGT. THOMAS ORMOND

- § 87(2)(b) old on the incident date, Sgt. Ormond is a white male, § 87(2)(b) with black hair and blue eyes.
- Sgt. Ormond's tour began at 7:15 p.m. on August 2, 2012, and concluded at 4:12 a.m. on August 3, 2012. He was the assigned impact supervisor in marked RMP 5326. His operator was PO Scott Smath. He was in uniform.

Memo Book

Sgt. Ormond noted in his memo book that at 9:30 p.m., the officers began conducting the checkpoint at Sutter Avenue and Fountain Avenue. At 10:30 p.m., he resumed patrol. He noted three arrests at 11:37 p.m. PO Mckiski made one arrest § 87(2)(b), PO Morales made one arrest § 87(2)(b) and PO Manney made one arrest for § 87(2)(a) 160.50. All the prisoners were transported to the 75th Precinct stationhouse (encl. 10A-C).

CCRB Testimony

On May 2, 2013, Sgt. Ormond was interviewed at the CCRB (encl. 10D-E). His statement is summarized below.

Sgt. Ormond remained outside of his vehicle while supervising the vehicle safety checkpoint. Sgt. Ormond first saw § 87(2)(b) when he was being escorted to the van, so did not witness the events prior to his arrest. § 87(2)(b) resisted being placed in the van by moving his body. The officers lifted him up to get him into the van. Sgt. Ormond did not see any officer punch or knee § 87(2)(b) in the chest. He denied that the officers pushed § 87(2)(b) Sgt. Ormond did not hear any officer make the alleged profane statements toward § 87(2)(b). He did not see any officer frisk any individual at the checkpoint, and he did not recall any vehicle be searched.

Witness Officer: PO SCOTT SMATH

- § 87(2)(b) old on the incident date, PO Smath is a white male, § 87(2)(b) with brown hair and blue eyes.
- PO Smath's tour began at 7:30 p.m. on August 2, 2012, and concluded at 4:05 a.m. on August 3, 2012. He was Sgt. Ormond's operator in marked van 5326. He was in uniform.

Memo Book

PO Smath indicated in his memo book that at 9:30 p.m., he was conducting a vehicle safety checkpoint at Fountain Avenue and Sutter Avenue. At 11:20 p.m., he made a vehicle stop, and at 11:30 p.m., he issued a summons to § 87(2)(b). He noted the conclusion of the checkpoint at 11:40 p.m. (encl. 9A-C).

CCRB Testimony

On April 23, 2013, PO Smath was interviewed at the CCRB (encl. 9D-E). On August 2, 2012, he conducted the vehicle safety checkpoint, but did not witness § 87(2)(b)'s arrest.

Witness Officer: PO JONATHAN MCKISKI

- § 87(2)(b) old on the incident date, PO Mckiski is a white male, § 87(2)(b) with brown hair and eyes.
- PO Mckiski's tour began at 7:30 p.m. on August 2, 2012, and it concluded at 4:05 a.m. on August 3, 2012. His initial assignment was foot post 65, but at 11:15 p.m., he began conducting a vehicle safety checkpoint with Sgt. Ormond, Sgt. Dalipi, PO Smath and PO Manney. He was in uniform and working on foot.

Memo Book

PO Mckiski noted in his memo book that at 11:37 p.m., while conducting a vehicle safety checkpoint at Fountain Avenue and Sutter Avenue, he stopped § 87(2)(b) vehicle, and § 87(2)(b) was subsequently arrested. § 87(2)(a) 160.50

CCRB Testimony

On April 17, 2013, PO Mckiski was interviewed at the CCRB (encl. 8E-F). His statement is summarized below.

Following making his arrest at the vehicle safety checkpoint, PO Mckiski was in the transport van processing his arrest. He denied that he could see what was going on at the vehicle checkpoint from inside the van. He did not witness § 87(2)(b)'s arrest or recall any interaction with any of the prisoners in the van.

Arrest for Incident and Disposition

- As of October 21, 2013, Office of Court Administration has no record of arrest number § 87(2)(b) § 87(2)(b)'s arrest (encl. 16A).

Status of Civil Proceedings

- § 87(2)(b) filed a Notice of Claim with the City of New York on § 87(2)(b), claiming false arrest; false imprisonment; negligent training, supervision, hiring and retention of police officers; unlawful search and seizure; loss of liberty, civil and constitutional rights; intentional and negligent infliction of emotional distress; negligence; assault; battery and excessive force; and seeking one million dollars as redress (encl. 3H-K). A 50H hearing was held on § 87(2)(b) (encl. 18B).

Civilians Criminal History

- [§ 87(2)(b)] [§§ 86(1)(3)&(4)] [§ 87(2)(c)]

Civilians CCRB History

- This is the first CCRB complaint filed by § 87(2)(b) (encl. 3C).

Subject Officers CCRB History

- PO Morales has been a member of the service for one year and there are no substantiated CCRB allegations against him (encl. 3A).
- PO Olsen has been a member of the service for three years and there are no substantiated CCRB allegations against him (encl. 3B).

Conclusion

Identification of Subject Officers

PO Morales was identified through § 87(2)(b)'s arrest report. He acknowledged searching § 87(2)(b)'s vehicle to remove the knife, § 87(2)(g). § 87(2)(b) alleged that the officer who handcuffed him, who he believed was his arresting officer, also punched, kneed and used profanity toward him. PO Olsen acknowledged that he handcuffed § 87(2)(b) § 87(2)(g).

Investigative Findings and Recommendations

Allegations Not Pleaded

In his initial complaint, § 87(2)(b) alleged that he asked an officer his name and shield number, and the officer did not provide the requested information. He also alleged that when his glasses fell off they broke. § 87(2)(g)

§ 87(2)(g)

§ 87(2)(g)

§ 87(2)(g)

§ 87(2)(g)

§ 87(2)(g)

Allegation A—Abuse of Authority: PO Juan Morales searched the car in which

§ 87(2)(b) was an occupant.

It is undisputed that PO Morales removed a knife from § 87(2)(b)'s vehicle. § 87(2)(b) stated that the knife had been located in the cup holder between the front seats of his car. After § 87(2)(b) exited his car, he observed PO Morales enter via the passenger's door, and position himself on the passenger's seat, from which he searched the glove compartment. § 87(2)(b) did not see what else PO Morales did inside his car because PO Olsen took him around the back of the car. PO Morales stated that when he shone a flashlight into the passenger's window of § 87(2)(b)'s car, he observed a knife in the center console. When he observed the knife, he signaled PO Olsen to order § 87(2)(b) out of the vehicle. PO Morales then completely entered the car through the passenger's door, removed the knife, and then stepped back out. He opened the knife and confirmed it was a gravity knife, § 87(2)(a) 160.50.

Upon stopping a vehicle for an infraction of Vehicle and Traffic Law, it is permissible for an officer to make outside visual inspections, including shining a flashlight into the interior of the vehicle, and order the driver and all occupants out. People v. Robinson, 97 N.Y.2d 638 (2001) (encl. 1A-R). The plain view doctrine allows the seizure of illegal objects or incriminating evidence immediately seen by officers. People v. Taylor, 2013 N.Y. App. Div. LEXIS 1415 (2013) (encl. 2A-B). An officer may conduct a limited search of a vehicle when he has perceived an articulable and specific threat to his safety. An automobile search incident to a recent occupant's arrest is permissible if the arrestee remains within reaching distance of the vehicle. People v. Newman, 96 A.D.3d (App. Div. 1st Dep't. 2012) (encl. 2C-G).

§ 87(2)(g)

It is therefore recommended that

Allegation A be closed as **exonerated**.

Allegation B—Discourtesy: PO Ryan Olsen spoke discourteously to § 87(2)(b)

Allegation C—Physical Force: PO Ryan Olsen used physical force against § 87(2)(b)

§ 87(2)(b) alleged that upon escorting him to the police van, PO Olsen told him to "shut the fuck up." When § 87(2)(b) responded by telling PO Olsen to "shut the fuck up," PO Olsen punched § 87(2)(b) in the chest. He then bent § 87(2)(b) over his handcuffed arms and kned him in the same approximate spot where the punch had landed. When PO Olsen kned him, § 87(2)(b)'s glasses fell off and onto the ground. § 87(2)(b) yelled at PO Olsen to pick up the glasses, and he responded, "Fuck your glasses; keep it moving." § 87(2)(b) said that he experienced slight chest pain but did not seek medical attention or receive medical treatment. PO Olsen denied that he used any profanity toward § 87(2)(b) or any force against him besides for that needed to secure him in handcuffs when he resisted arrest. PO Morales, PO Manney, Sgt. Dalipi and Sgt. Ormond all observed § 87(2)(b) resist when being escorted to the van, but denied that any officer punched, pushed or kned him. They did not hear any officer use any profanity toward § 87(2)(b). PO Morales and Sgt. Ormond testified that the officers escorting § 87(2)(b) to the police van had to lift him up to overcome his resistance and get him into the van safely. PO Smath and

PO Mckiski did not witness § 87(2)(b) s arrest. § 87(2)(g) It is therefore recommended that **Allegations B and C** be closed as **unsubstantiated**.

Team: _____

Investigator: _____
Signature Print Date

Supervisor: _____
Title/Signature Print Date

Reviewer: _____
Title/Signature Print Date

Reviewer: _____
Title/Signature Print Date